

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #

Date of filing:

-----X
LORNE GORDON,

Plaintiff,

Plaintiff designates
KINGS COUNTY as
the place of trial

-against-

Basis of the venue is
Plaintiff's residence

THE CITY OF NEW YORK, POLICE OFFICER
ELIEZEL PENADIAZ Shield #28220, and JOHN
DOES-Police Officers as yet unidentified,

SUMMONS

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PLAINTIFF'S ATTORNEYS:

BELLUCK & FOX, LLP
546 5th Avenue, 5th Floor
New York, New York 10036
(212) 681-1575

NEW YORK CITY POLICE
DEPARTMENT 42ND PRECINCT
c/o ELIEZEL PENADIAZ Shield #28220
830 Washington Avenue
Bronx, NY 10451

Dated: New York, NY

June 6, 2024

BELLUCK & FOX, LLP

By:



Harris Marks

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LORNE GORDON,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
ELIEZEL PENADIAZ Shield #28220, and JOHN
DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiff by his attorneys, **BELLUCK & FOX, LLP** complaining of the defendants
herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, plaintiff **LORNE GORDON**, was
and still is a resident of the County of Kings, State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW
YORK**, was and still is a municipal corporation, duly organized and existing pursuant to
the laws of the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force
known as the New York City Police Department.
4. That prior hereto on July 14, 2023, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the

injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter **THE CITY OF NEW YORK**, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Despite being available, pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was not requested by the City of New York.

6. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, as police officers, agents, servants and/or employees.

7. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **LORNE GORDON**, was lawfully present at or about the premises located at 972 Washington Avenue, in the County of Bronx, City and State of New York.

8. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, **LORNE GORDON**, was approached and was assaulted and battered by the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid location.

9. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid location discharged his service weapon and/or gun and struck plaintiff, **LORNE GORDON**.

10. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned shooting, assault and battery was performed knowingly, intentionally and willfully and without reason or provocation from the plaintiff, **LORNE GORDON**.

11. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, who committed the aforementioned assault, battery while using a service weapon and/or gun upon the plaintiff, **LORNE GORDON**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

12. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, the assault, battery and the use of a service weapon and/or gun upon on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. That on April 21, 2023, and at all times hereinafter mentioned and upon

information and belief, the assault, battery and shooting of the plaintiff was without probable cause was in no way due to any act of the said plaintiff.

14. The aforementioned shooting was performed knowingly, intentionally and willfully.

15. The aforementioned shooting was performed negligently and recklessly.

16. That the defendant, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, negligently discharged his service weapon and/or gun causing bullets to strike the plaintiff, **LORNE GORDON**, at the aforesaid location while under the scope of his employment with the defendant, **THE CITY OF NEW YORK**.

17. By reason of said assault, battery and shooting of the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

18. As a result, plaintiff sustained permanent and severe personal injuries and is rendered, sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties as prior to this occurrence; pain and suffering; mental anguish and distress; unable to attend to his usual duties and vocation; unable to work; required emergency medical care and attention and will require medical

care and attention in the future; required diagnostic testing; required multiple surgical procedures and extended hospitalization; Plaintiff is wheelchair bound and is unable to walk; loss of use of his upper and lower extremities; exacerbation and aggravation of prior condition; may; and plaintiff has been otherwise injured, all of which injuries are permanent in nature and continuing into the future.

19. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. That said incident and the injuries resulting therefrom were caused solely by the negligence, carelessness, and recklessness of the defendant, **THE CITY OF NEW YORK**, through its agents, servants, employees and the police officers involved, defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, both directly and vicariously.

22. Such negligence consisted of negligence in training, hiring, supervision and retention of the police officers, including but not limited to the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, who were involved in this incident; in failing to observe and follow the existing police department protocols for police officers designed to govern the use of deadly

lethal force causing the serious injuries both physical and emotional, discrimination arising and resulting out of the assault, battery and shooting with a service weapon and/or gun upon the plaintiff and further deprived plaintiff's civil rights, privileges and immunities secured under the Constitutions of the United States of America and State of New York; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers/detectives; failing to properly investigate their background; in failing to train and instruct police officers especially regarding the abuse of power while in the field; in failing to give police officers proper instructions on the use of force, use of firearms including proper discharge of said weapons; in their training and instruction, more specifically with regards to their training as to the use of service weapon and/or gun in public; improperly supervised police officers in the field, including the staffing, administration and processing of persons suspected of violation of the criminal laws of the State of New York which allowed the assault, battery and shooting with a use of a service weapon and/or gun upon the plaintiff, **LORNE GORDON**.

23. The defendant, **THE CITY OF NEW YORK**, was negligent in training police officers in dealing with emotionally disturbed individuals including on April 21, 2023.

24. The defendants, **THE CITY OF NEW YORK** and **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, were negligent, reckless and careless in responding to the underlying call, and responding to the situation therein presented with, so as to cause the negligent, reckless,

response and shooting of the plaintiff, **LORNE GORDON**, something that a reasonably prudent police officer would not have done under similar circumstances.

25. That the defendant, **THE CITY OF NEW YORK**, through its agents, servants, employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220,,** and **JOHN DOES-Police Officers as yet unidentified**, negligent, reckless, and careless in the assault, battery, and shooting with a use of a service weapon and/or gun and violated the civil rights of the plaintiff, **LORNE GORDON**.

26. As the result of said negligence, the plaintiff, **LORNE GORDON**, was caused to suffer severe physical injuries and pain and suffering; emotional and psychological distress and horror.

27. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220,** and **JOHN DOES-Police Officers as yet unidentified**, who assaulted, battered, shot with a use

of a service weapon or gun and violated the civil rights of the plaintiff.

30. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, and continued to employ them and allowed them to be in contact with the public at large.

31. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220,,** and **JOHN DOES-Police Officers as yet unidentified**, were working within the scope of their employment and authority with the defendant, **THE CITY OF NEW YORK**, when they arrested and confined the plaintiff, **LORNE GORDON**.

34. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

35. That as a result of the aforesaid false arrest and confinement, the plaintiff,

LORNE GORDON, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

36. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, **LORNE GORDON**.

39. That the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, while acting within the scope of their employment, intentionally confined the plaintiff, **LORNE GORDON**, against his will and said confinement was not privileged.

40. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. That the defendant, **THE CITY OF NEW YORK**, had a duty to protect the public including the plaintiff, **LORNE GORDON**, from dangers that would reasonably result from improper hiring, supervision and terminating its agents, servants, and/or employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**.

43. That upon information and belief, the defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, were acting as agents, servants, and/or employees of the defendant, **THE CITY OF NEW YORK**, when they approached and assaulted and battered, including the use of a gun upon the plaintiff, **LORNE GORDON**.

44. That the defendant, **THE CITY OF NEW YORK**, had a duty to the public, including the plaintiff, **LORNE GORDON**, to properly supervise and control its agents, servants, and/or employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**.

45. That the defendant, **THE CITY OF NEW YORK**, knew or should have known of the instances of dangerous or incompetent behavior of its agents, servants and/or employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield**

#28220, and JOHN DOES-Police Officers as yet unidentified.

46. That the defendant, **THE CITY OF NEW YORK**, was negligent in failing to train and supervise its agents, servants and/or employees in how to appropriately handle a situation involving an emotionally disturbed person.

47. That the defendant, **THE CITY OF NEW YORK**, breached its duties to the public, including the plaintiff, **LORNE GORDON**, in failing to adequately hire, supervise, control, discipline, or terminate its agents, servants and/or employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**.

48. The training guidelines established by the defendant, **THE CITY OF NEW YORK**, and its police department were insufficient to instruct its officers, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, in the use of their service weapon and/or gun on the plaintiff, **LORNE GORDON**, while at the aforementioned location.

49. That the defendant, **THE CITY OF NEW YORK**, failed to provide adequate training to its agents, servants, and/or employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, acted with an intentional, reckless, and negligence of the plaintiff, **LORNE GORDON**, and his constitutional rights, and defendants' actions were willful, wanton, oppressive and malicious.

50. By reason of the foregoing, plaintiff, **LORNE GORDON**, was caused to

sustain serious injuries.

51. That as a result of the defendants' negligence as aforesaid, this plaintiff, **LORNE GORDON**, has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

52. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "51" inclusive with the same force and effect as if more fully set forth at length herein.

53. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

54. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **LORNE GORDON**.

55. That as a result of said intentional and negligent acts, the plaintiff, **LORNE GORDON**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

56. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

57. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "56" inclusive with the same force and effect as if more fully set forth at length herein.

58. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

59. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, were acting within the scope of their employment, maliciously prosecuted the plaintiff, **LORNE GORDON**.

60. That on April 21, 2023, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

61. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION

62. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "61" inclusive with the same force and effect as if more fully set forth at length herein.

63. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **LORNE GORDON**.

64. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

65. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

66. The defendant, **THE CITY OF NEW YORK**, at all relevant times upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, routinely commit constitutional violations such as those at

issue here and has failed to change its policies, practices and customs to stop this behavior.

67. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

68. As a direct and proximate result of this unlawful conduct, the plaintiff, **LORNE GORDON**, sustained the damages hereinbefore alleged.

AS AND FOR A TENTH CAUSE OF ACTION

69. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "68" inclusive with the same force and effect as if more fully set forth at length herein.

70. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

71. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER ELIEZEL PENADIAZ Shield #28220**, and **JOHN DOES-Police Officers as yet unidentified**, herein-above alleged.

72. By the reason of the foregoing, the plaintiff, **LORNE GORDON**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **LORNE GORDON**, for assault and battery

demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on all Causes of Action, together with attorneys' fees, and the costs and disbursements of this action.

DATED: New York, New York
June 6, 2024

Yours,

A handwritten signature in black ink, appearing to read "Harris Marks", written in a cursive style.

HARRIS MARKS, ESQ.
BELLUCK & FOX, LLP
546 5TH Avenue, 5th Fl.,
New York, New York 10036

ATTORNEY'S VERIFICATION

HARRIS MARKS, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate at **BELLUCK & FOX, LLP** attorneys of record for Plaintiff **LORNE GORDON** in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, NY
June 6, 2024



HARRIS MARKS